Health, Safety and Reclamation Code for Mines in British Columbia

2026

Ministry of Mining and Critical Minerals
Victoria, British Columbia
Revised June 2026

BRITISH COLUMBIA

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Message from the Minister

June 2026

Our government remains committed to the health and safety of all British Columbians.

Following a recommendation by the Mining Jobs Task Force, the Ministry of Energy, Mines and Petroleum Resources (now Ministry of Mining and Critical Minerals) established a Standing Code Review Committee (Committee) in 2019, with equal representation from Indigenous communities, labour, and industry. The Committee's primary objective is to review B.C.'s mining regulations in light of evolving trends and to ensure strong protections for worker health, worker safety, and the environment at mine sites.

The Health, Safety and Reclamation Code for Mines in British Columbia (Code) is the primary vehicle for regulating the province's mining industry. The Code includes regulatory standards that address all stages of a mine's life: from exploration through to mine development, operation, closure, and reclamation.

This revised Code introduces new and updated requirements to enhance worker health and safety across mining operations, including exploration activities. Key changes include provisions addressing bullying and harassment, the use of off road vehicles at mine sites, electrical safety, clarified roles and responsibilities, updated exposure limits for airborne substances during shifts longer than 8 hours, and revised requirements specific to exploration.

The revisions reflect the Committee's ongoing mandate to continually improve, strengthen and modernize the regulatory framework for mines in British Columbia.

I would like to thank the Code Review Committee and the supporting Sub-Committees and Task Groups for the work that has been completed on this edition of the Code. The collaborative work of everyone involved helps to improve worker safety and strengthen mining oversight, in support of a responsible and sustainable mining industry in British Columbia.

Honourable Jagrup Brar
Minister of Mining and Critical Minerals

HEALTH, SAFETY AND RECLAMATION CODE REVIEW COMMITTEE

2026 REVISIONS

Chair:
Jorge Freitas, Director, Regulatory and Code Review

Members
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Dave Williams, Unifor

SUB-COMMITTEES AND TASK GROUPS

Occupational Health Sub-Committee

UN Declaration Sub-Committee

Part 5 – Electrical Safety Sub-Committee

Part 9 – Exploration Sub-Committee

Off Road Vehicles Task Group

Roles and Responsibilities Task Group

Bullying and Harassment Task Group

Health, Safety and Reclamation Code for Mines in British Columbia
Guidance Documents:



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This Act is an unofficial version reproduced for convenience purposes only.

The most current official version of the Mines Act and its associated Regulations can be found on the BC Laws website at: https://www.bclaws.gov.bc.ca/civix/content/complete/statreg/1325524918/96293/?xsl=/templates/browse.xsl

MINES ACT

[RSBC 1996] CHAPTER 293

[Updated to June 2026]

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Definitions

1 In this Act:

"abandoned mine" means a mine for which all permit obligations under this Act have been satisfied and in respect of which the mineral claims have reverted to the government;

"agent" means a person having control of a mine on behalf of the owner;

"authorized person" means a qualified person appointed or designated by the manager to perform specified duties;

"chief auditor" means the person designated under section 2.1 as the chief auditor;

"chief inspector" means the person designated under section 3 as the Chief Inspector of Mines;

"chief permitting officer" means the person designated under section 8.2 as the chief permitting officer;

"closed mine" means a mine at which all mining activities have ceased but in respect of which the owner, agent, manager or permittee remains responsible for compliance with this Act, the regulations, the code and that person's obligations under the permit for that mine;

"code" means the health, safety and reclamation code established under this Act;

"cultural heritage resource" means a cultural heritage resource as defined in the *Mineral Tenure Act*;

"detrimental environmental impact" occurs when the quality of air, land or water substantially reduces the usefulness of the environment or its capacity to support life;

"inspector" means a person appointed by the chief inspector as an inspector of mines;

"local union" means a union certified under the *Labour Relations Code* as the bargaining agent for employees or a unit of employees at a mine;

"management" means employees of a mine who act as supervisors;

"management co-chair" means the co-chair chosen for the occupational health and safety committee by the manager;

"manager" means the person appointed under section 21 to be responsible for the management and operation of a mine;

"mine" includes

(a) a place where mechanical disturbance of the ground or any excavation is made to explore for or to produce coal, mineral bearing substances, placer minerals, rock, limestone, earth, clay, sand or gravel,

(b) all cleared areas, machinery and equipment for use in servicing a mine or for use in connection with a mine and buildings other than bunkhouses, cook houses and related residential facilities,

(c) all activities including exploratory drilling, excavation, processing, concentrating, waste disposal and site reclamation,

(d) closed and abandoned mines, and

(e) a place designated by the chief inspector as a mine;

"mineral title" means

(a) a claim or lease as defined in the *Mineral Tenure Act*, or

(b) a lease or licence as defined in the *Coal Act*;

"mining activity" means any activity related to

(a) the exploration and development of a mineral, a placer mineral, coal, sand, gravel or rock, or

(b) the production of a mineral, a placer mineral, coal, sand, gravel or rock,

and includes the reclamation of a mine;

"occupational health and safety committee" means the joint worker management committee established for each mine under this Act;

"official" means any of the following persons:

(a) the chief auditor;

(b) the chief inspector;

(c) the chief permitting officer;

(d) an inspector;

"owner" includes every person who is the immediate holder, proprietor, lessee, occupier or permittee of a mine or of any part of it, but does not include a person who

(a) receives only a royalty or rent from a mine that is subject to a lease, grant or other authority for its working, or

(b) is the owner of the surface rights of land in, on or under which a mine exists but who is not the immediate holder, proprietor, lessee, occupier or permittee;

"permit" means a permit issued under section 10;

"permittee" means the holder of a permit issued under section 10;

"qualified person" means a person who, in the opinion of the manager, is

(a) qualified because of the person's knowledge, training and experience to design, organize, supervise and perform the duties for which the person is appointed,

(b) familiar with the provisions of this Act, the code and the regulations that apply to the duties for which the person is appointed, and

(c) capable of identifying any potential or actual danger to health or safety in the workplace;

"supervisor" means a person who instructs, directs or controls workers in the performance of their duties and who is authorized by the manager to take or recommend disciplinary action against workers;

"worker" means a person who is an employee but does not include a supervisor;

"worker co-chair" means the co-chair chosen for the occupational, health and safety committee by the workers;

"workplace" means a place where work is carried out in, on or about a mine.

Application

2 This Act applies to all mines during exploration, development, construction, production, closure, reclamation and abandonment.

Chief auditor

2.1 (1) The minister must designate in writing a person appointed under the *Public Service Act*, as the chief auditor.

(2) The minister may not designate any of the following persons as the chief auditor:

(a) the chief inspector;

(b) the chief permitting officer;

(c) an inspector.

Authority of chief auditor

2.2 The chief auditor may conduct audits for the purpose of evaluating the effectiveness of any of the following:

(a) the regulatory framework for mining in British Columbia;

(b) policies, programs, practices and actions to fulfill the objectives of that framework.

Audit plan

2.3 Each year, the chief auditor must

(a) develop an audit plan identifying the subject matter of the audits to be given priority in that year, and

(b) publish the audit plan on a publicly accessible website maintained by or on behalf of the chief auditor.

Chief auditor's authority to delegate

2.4 (1) Subject to subsection (2), the chief auditor may delegate in writing to any person a power or duty of the chief auditor under this Act.

(2) The chief auditor may not delegate a power or duty to any of the following persons:

(a) the chief inspector;

(b) the chief permitting officer;

(c) an inspector.

Audits

2.5 (1) For the purpose of conducting an audit, the chief auditor may do any of the following:

(a) at any reasonable time, enter and inspect the following places:

(i) land covered by a mineral title;

(ii) a mine;

(b) inspect records or things;

(c) require a person to produce a record or thing in the person's possession or control.

(2) The chief auditor, on entering a place under subsection (1), may bring any persons and equipment that the chief auditor considers necessary for the purpose of the audit.

(3) If, in inspecting a place under subsection (1), the chief auditor identifies a hazard and is of the opinion that a delay in remedying the hazard would be dangerous to persons, property or the environment, the chief auditor may issue an order

(a) for immediate remedial action,

(b) to suspend the regular work until remedial action is taken, or

(c) to close the mine or part of it until remedial action is taken.

(4) As soon as practicable after issuing an order under subsection (3), the chief auditor must

(a) notify the chief inspector that the order was issued, and

(b) provide to the chief inspector any information requested by the chief inspector respecting the hazard or the order.

Audit reports

2.6 (1) After completing an audit, the chief auditor must provide a report to the minister respecting the following:

(a) the conclusions reached by the chief auditor;

(b) the chief auditor's reasons for those conclusions;

(c) the chief auditor's recommendations, if any, arising from the audit.

(2) The chief auditor must publish, on a publicly accessible website maintained by or on behalf of the chief auditor, the reports provided to the minister under subsection (1).

Chief inspector

3 The minister must designate in writing a person appointed under the *Public Service Act,* as the Chief Inspector of Mines.

Authority of chief inspector

4 The chief inspector has the rights and powers conferred on an inspector under this Act.

Power to appoint inspectors

5 The chief inspector may appoint persons as inspectors for the purposes of this Act.

Chief inspector's authority to delegate

6 The chief inspector may delegate in writing to an inspector any of the powers conferred on the chief inspector under this Act.

Investigations

7 On the direction of the chief inspector, an inspector must investigate and report on an incident that has caused, or has or had the potential to cause, serious personal injury, loss of life or property or environmental damage.

Power to compel persons to answer questions and order disclosure

8 (1) For the purposes of conducting an investigation under section 7, an inspector may make an order requiring a person to do either or both of the following:

(a) attend, in person or by electronic means, before the inspector to answer questions on oath or affirmation, or in any other manner;

(b) produce for the inspector a record or thing in the person's possession or control.

(2) An inspector may apply to the Supreme Court for an order

(a) directing a person to comply with an order made under subsection (1), or

(b) directing any directors and officers of a person to cause the person to comply with an order made under subsection (1).

Contempt proceeding for uncooperative person

8.1 The failure or refusal of a person subject to an order under section 8 to do any of the following makes the person, on application to the Supreme Court by an inspector, liable to be committed for contempt as if in breach of an order or judgment of the Supreme Court:

(a) attend before the inspector;

(b) take an oath or make an affirmation;

(c) answer questions;

(d) produce records or things in the person's possession or control.

Chief permitting officer

8.2 The minister must designate in writing a person appointed under the *Public Service Act*, as the chief permitting officer.

Chief permitting officer's authority to delegate

8.3 The chief permitting officer may delegate in writing to an inspector any of the powers conferred on the chief permitting officer under this Act.

Advisory committee

9 The chief permitting officer must establish and chair an advisory committee and must establish regional advisory committees to review applications for mine approvals and reclamation permits, referred to them by the chief permitting officer, to assist the chief permitting officer in carrying out the duties of the chief permitting officer under this Act.

Permits

10 (0.1) In this section, **"exempt person"** means a person in a class of persons exempt under subsection (1.1) (a) from the requirement under subsection (1) to hold a permit.

(1) Before starting any work in, on or about a mine, the owner, agent, manager or any other person must hold a permit issued by the chief permitting officer and, as part of the application for the permit, there must be filed with an inspector a plan outlining the details of the proposed work and a program for the conservation of cultural heritage resources and for the protection and reclamation of the land, watercourses and cultural heritage resources affected by the mine, including the information, particulars and maps established by the regulations or the code.

(1.1) The Lieutenant Governor in Council, by regulation and on any terms and conditions considered necessary or advisable, may exempt

(a) one or more classes of persons, or

(b) a person or a ministry of the government respecting one or more classes of work in, on or about a mine

from the requirement under subsection (1) to hold a permit.

(1.2) Despite subsection (1.1) (a), the chief permitting officer may require an exempt person to comply with the requirement under subsection (1) to hold a permit if the chief permitting officer is satisfied that, because of the nature of the proposed work, it is necessary for the exempt person to hold a permit.

(2) The chief permitting officer, in writing and on any terms and conditions considered necessary or advisable, may exempt a person from the requirement under subsection (1) to hold a permit if

(a) the chief permitting officer is satisfied that, because of the nature of the proposed work, it is not necessary for the person to hold a permit, and

(b) the person is not an exempt person.

(2.01) Without limiting subsection (1.1) or (2), terms and conditions imposed under those subsections may include terms and conditions respecting any or all of the following:

(a) the provision of security in the manner and for purposes similar to those described in subsections (4) and (5);

(b) notification and reporting requirements;

(c) the use of qualified professionals;

(d) environmental protection and reclamation;

(e) public health and safety.

(2.02) A person exempt from the requirement under subsection (1) to hold a permit must comply with the terms and conditions, if any, imposed under subsections (1.1), (2) and (2.01), as applicable.

(3) If the chief permitting officer considers the application for a permit is satisfactory and if the applicant has complied with the regulations, if any, made under section 38 (2) (l) respecting applications for permits, the chief permitting officer may issue the permit, and the permit may contain conditions that the chief permitting officer considers necessary.

(4) The chief permitting officer may, as a condition of issuing a permit under subsection (3), require that the owner, agent, manager or permittee give security in the amount and form, and subject to conditions, specified by the chief permitting officer

(a) for mine reclamation, and

(b) to provide for protection of, and mitigation of damage to, watercourses and cultural heritage resources affected by the mine.

(5) If required by the chief permitting officer, the owner, agent, manager or permittee, in each year, must deposit security in an amount and form satisfactory to the chief permitting officer so that, together with the deposit under subsection (4) and calculated over the estimated life of the mine, there will be money necessary to perform and carry out properly

(a) all the conditions of the permit relating to the matters referred to in subsection (4) at the proper time, and

(b) all the orders and directions of the chief permitting officer or an inspector respecting the fulfillment of the conditions relating to the matters referred to in subsection (4).

(6) The owner, agent, manager or permittee, or an inspector, may apply to the chief permitting officer for a revision of the conditions or an extension of the term of a permit issued under this section, and the chief permitting officer, if the applicant has complied with the regulations, if any, made under section 38 (2) (l) respecting revisions or extensions under this subsection, may revise the conditions or extend the term, as the case may be.

(7) For the purposes of subsection (6), if the chief permitting officer considers it necessary, the chief permitting officer may impose additional conditions or changes in the existing conditions, including changes to the security required or the term of the permit, with or without an application under this section.

(8) [Repealed 2020-15-6.]

(9) [Repealed 2014-14-52.]

(10) [Repealed 2002-25-46.]

Chief inspector's authority on failure to comply with code, regulations or permit

10.1 (1) If the owner, agent, manager or permittee fails to comply with any of the following to the satisfaction of the chief inspector, the chief inspector may issue an order to remedy the failure by the date specified in the order:

(a) the requirements respecting reclamation in the code or regulations;

(b) the conditions of the permit, including the conditions respecting reclamation.

(2) If the chief inspector issues an order under subsection (1) and the person to whom the order was issued has not complied with the order by the date specified in the order, the chief inspector may do one or more of the following:

(a) order the owner, agent, manager or permittee to stop the mining operation;

(b) enter on or below the surface of the mine and cause the required work to be performed or completed;

(c) apply all or part of the security toward payment of the cost of the work required to be performed or completed;

(d) close the mine;

(e) cancel the permit.

(3) Nothing in this section affects the powers or duties of an inspector under this Act.

Permits – powers of minister

11 If the minister considers it to be necessary in the public interest, the minister, in respect of the issuing of permits, has and may exercise all the powers that the chief permitting officer may exercise under this Act.

Acquisition of a mine

11.1 If a person acquires a mine, before the person engages in mining activity the person must apply to the chief permitting officer to

(a) obtain a permit, or

(b) amend an existing permit for the mine to identify the applicant as the holder of the permit.

Mine reclamation fund

12 (1) In this section, "**fund**" means the mine reclamation fund.

(2) The Lieutenant Governor in Council may, by regulation, establish a fund to be known as the mine reclamation fund into which must be paid security, that is in the form of money, given by the owner, agent or manager of a mine under section 10.

(3) Money received from an owner, agent or a manager must be credited to a separate account in the fund in the name of the mine.

(4) The minister may requisition payments from an account in the fund

(a) to refund money and interest earned on it to the owner, agent or manager of a mine from time to time if in the opinion of the chief inspector it is no longer required for mine reclamation and protection of, and mitigation of damage to, land and watercourses affected by the mine, or

(b) to pay for the cost of work required under section 10.1 (2) (b).

Variance of regulations or code for individual mine

13 (1) On receiving a written application from the manager, the occupational health and safety committee or the local union requesting the suspension or variance of a provision of the regulations or of the code, the chief inspector may suspend or vary the provision if the chief inspector is of the opinion that the provision does not operate in the best interest of, or is not necessary to, health and safety in an individual mine.

(2) The chief inspector must ensure that the parties affected by the application are advised of the application for, and the subsequent decision respecting, a variance.

(3) The chief inspector must maintain a register of all variances.

(4) At least once every 5 years, the chief inspector

(a) must review each variance and advise the manager, occupational health and safety committee and local union that the chief inspector intends to review the variance, and

(b) after reviewing any submissions, must advise them whether or not the variance is to continue.

Discrimination

14 (1) Each manager must ensure that no employee is discriminated against in any manner, including adversely affecting any term or condition of employment, for complying with this Act, the regulations or the code.

(2) If advised in writing of an alleged case of discrimination against an employee for complying with this Act, the regulations or the code or refusing to work because it would result in a contravention of this Act, the regulations or the code, the chief inspector must investigate and report the findings to the manager and occupational health and safety committee, and the local union, if any.

(3) If the chief inspector is satisfied that the allegation is true, the chief inspector may make one or more orders requiring the employer to do one or more of the following:

(a) cease the discrimination;

(b) hire or reinstate the employee;

(c) pay the employee any wages lost by reason of the discrimination;

(d) pay the employee reasonable and actual out of pocket expenses incurred by the employee by reason of the discrimination.

Inspections

15 (1) For the purposes of administering or enforcing this Act, the regulations, the code, a permit or an order issued under this Act, an inspector may do any of the following:

(a) at any reasonable time, enter and inspect the following places:

(i) a mine;

(ii) a site at which the inspector considers mining activity to be taking place, including mining activity not authorized by a permit;

(b) inspect records or things at a place referred to in paragraph (a);

(c) require a person at a place referred to in paragraph (a) to produce a record or thing in the person's possession or control.

(1.1) An inspector who enters a place under subsection (1) may bring any persons and equipment that the inspector considers necessary for the purpose of the inspection.

(2) If an inspector is making a health and safety inspection, on arrival at the mine the inspector must request the manager to arrange for the worker co-chair or designate and the management co-chair or designate each to appoint a representative to accompany the inspector on the inspection.

(3) Despite subsection (2), an inspector may perform the inspection without either or both management and worker representatives, if on completion of the inspection the inspector meets with or otherwise communicates with each co-chair or each designate of a co-chair to discuss the inspector's findings and their occupational, health and safety concerns, if any.

(4) An inspector must complete an inspection report within 7 business days of completing the inspection and promptly provide the manager, and, in the case of a health and safety inspection, the occupational health and safety committee and local union with a copy of the inspection report on its completion, and the report must

(a) list the workplaces inspected,

(b) note any contraventions of an order under this section,

(c) note any contraventions of the Act, the regulations, the code or a permit, and

(d) order remedial action, specify the results to be obtained by the remedial action and specify time limits for compliance with the order or any provision of the Act, the regulations, the code or a permit.

(4.1) If an inspector believes on reasonable grounds that a person has contravened or is contravening an order under this section or a provision of the Act, the code, the regulations or a permit and that the contravention has a detrimental environmental impact, the inspector may order the owner, agent, manager, permittee or any other person apparently in charge in, on or about a mine to do any of the following:

(a) take immediate remedial action;

(b) suspend regular work until remedial action is taken;

(c) close the mine or part of it until remedial action is taken.

(4.2) An order under this section may be made against an owner, agent, manager, permittee, contractor or other person who carries out mining activity without a permit.

(5) If an inspector is of the opinion that a delay in remedying a hazard would be dangerous to persons, property or the environment, the inspector must issue an order

(a) for immediate remedial action,

(b) to suspend regular work until remedial action is taken, or

(c) to close the mine or part of it until remedial action is taken.

(6) Within 15 business days after receiving the inspection report, the manager must

(a) submit a written report outlining the remedial steps taken and the work still outstanding, and

(b) promptly provide a copy to the inspector, and, in the case of health and safety matters, the occupational health and safety committee and the local union.

(7) The owner, agent, manager, permittee, and all persons in, on or about a mine must provide an inspector with all assistance necessary for the completion of an inspection or investigation.

(8) For the purposes of subsections (4) and (6), a business day is a day other than Saturday or a holiday.

Order not to interfere with public works, etc.

16 An inspector may order the operation of a mine to be conducted in a manner that will not interfere with a public work, public service, public utility, highway or railway, or with a pipeline as defined in section 1 (2) of the *Energy Resource Activities Act* or an adjacent mine property.

Chief inspector's authority to cause work to be done

17 (1) The chief inspector may take an action described in subsection (1.1) if the chief inspector considers that any of the following applies:

(a) there is an emergency at a mine;

(b) work may be necessary in, on or about a closed or abandoned mine in order to prevent danger to persons or property or to abate pollution of the land and watercourses affected by the mine.

(1.1) For the purpose of subsection (1), the chief inspector may do either or both of the following:

(a) issue an order restricting or prohibiting a person from carrying out an action referred to in the order;

(b) enter on or below the surface of the mine and cause work to be done to remove or alleviate the danger or remedy the pollution.

(2) The costs incurred for work done under this section must be paid from the consolidated revenue fund without an appropriation other than this subsection.

(3) The amount expended plus interest at a prescribed rate is a debt due to the government and forms a lien and charge on the mine or mineral title in favour of the government.

(4) Notice of the debt in the prescribed form may be registered as a charge in the land title office or in the office of the chief gold commissioner, and no transfer of title or other dealing with the mine may take place until the debt is paid and the notice cancelled.

(5) With or without payment and on conditions the minister may impose, the minister may cancel the notice registered under subsection (4) and, on that happening, the mine may be transferred or otherwise dealt with.

(6) For the purpose of recovering the costs referred to in subsection (2), the chief inspector may do one or more of the following:

(a) order the owner, agent, manager or permittee to pay the costs;

(b) realize all or part of the security provided under section 10 and order the owner, agent, manager or permittee to replace, by the time specified in the order, the security realized under this paragraph.

Engineering report

18 An inspector may order the owner, agent or manager to provide at the owner's expense an independent study prepared by an engineer or other licensed professional acceptable to the inspector

(a) respecting health and safety at the mine or safety of its equipment, buildings, workings or structures,

(a.1) respecting actual or potential environmental damage resulting from mining activity at the mine, or

(b) in connection with an incident that the inspector is investigating.

Repealed

19 [Repealed 2020-15-13.]

Repealed

20 [Repealed 2007-15-80.]

Appointment of manager

21 An owner or agent must,

(a) before work begins, appoint a manager and ensure that there is a person acting in that capacity at all times,

(b) immediately after each appointment, notify the inspector in writing, of the name of the manager, and

(c) provide the manager or the manager's designate with every facility for conducting the operation of the mine in accordance with the requirements of this Act, the regulations and the code.

Manager's qualifications and responsibility

22 (1) Each manager and designate must possess qualifications established by the regulations or the code.

(2) The manager or designate must attend daily at an operating mine.

Manager's absence

23 Each manager must designate in writing a qualified person to be responsible during the manager's absence to ensure compliance with this Act, the regulations, the code and the permit.

Compliance

24 (1) An owner, agent, manager or permittee must take all reasonable measures to ensure compliance with the following:

(a) this Act, the regulations and the code;

(b) the permit issued for the mine;

(c) an order issued under this Act in relation to the mine.

(2) A person who performs or supervises work in, on or about a mine must take all reasonable measures to ensure compliance with the requirements applicable to the person's work or supervision under the following:

(a) this Act, the regulations and the code;

(b) the permit issued for the mine;

(c) an order issued under this Act in relation to the mine.

(3) Without limiting subsection (1), the owner, agent, manager or permittee must carry out reclamation in accordance with the regulations, the code, the permit for the mine, and the orders issued under this Act in relation to the mine.

(4) This section applies whether or not any of the following applies in relation to the mine:

(a) security has been provided under section 10 (5);

(b) the chief inspector has exercised a power under section 10.1;

(c) the chief inspector has caused work to be done under section 17.

Contractors

25 (1) If work in or about a mine is let to a contractor, the contractor and the contractor's manager, as well as the owner, agent and manager of the mine, must take all reasonable measures to ensure compliance with the provisions of this Act, the regulations, the code, the permit and orders under this Act pertaining to the work over which they have control.

(2) In a case of noncompliance with subsection (1), the contractor and the contractor's manager commit an offence that is punishable in the same manner as if the contractor and contractor's manager were the owner, agent or manager of the mine.

Supervision required

26 Each manager must ensure that every person employed at a mine, if required by the regulations or the code, is under the daily supervision of a person who holds a valid and appropriate certificate as required by the regulations or the code.

Mine plans

27 Each manager must keep in the office at the mine site accurate plans that

(a) are updated every 3 months,

(b) are prepared on a scale that accords with good engineering practice, and

(c) contain particulars established by the regulations or the code.